



Procedure No: EXP202312119 (PS/00518/2023)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 07/07/23, A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity CARSO TRADING, S.L., with CIF: B12940946 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

The facts stated by the complainant are as follows:

"On 22/04/23, I received a commercial communication by email at my address, without prior request or express authorization, and without an existing contractual relationship. Although I should never have received that email, on 24/04/23 I wrote to the sender requesting that they cease their communications and to exercise my right of access to the email address indicated in their privacy policy support@posicionar.org; they have continued sending me their SPAM and have not responded to the exercise of my rights.

The addresses seomultiple.com and prensamadrid.com have the same privacy policy, as they are part of the address posicionar.org.

Along with the complaint documents, the following documentation is attached:

- Copy of the commercial email received from the address ***EMAIL.1 on 22/04/23.
- Copy of the email sent by the complainant to the address soporte@posicionar.org on 24/04/23 in which they request the right of access to their personal data, as well as their opposition to the processing of their personal data for marketing purposes.
- Copy of the commercial email received from the address ***EMAIL.2 on 03/07/23.

SECOND: On 13/09/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to report, within one month, on what was stated in the complaint.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), as certified by the Electronic Notifications and Electronic Address Service, was sent to the respondent on 13/09/23 via the electronic notification service, "NOTIFIC@", and was automatically rejected on 24/09/23, as stated in the acknowledgment of receipt in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail to the address indicated in the Central Commercial Registry as the registered office:

***DIRECCION.1, which was returned to sender on 04/10/23, with the message "unknown," as stated in the acknowledgment of receipt in the file, and no response to this forwarding document has been received.

THIRD: On 27/07/23, the Director of the Spanish Agency for Data Protection issued a decision to admit the processing of the complaint submitted, in accordance with Article 65 of the LOPDGDD.

FOURTH: On 13/11/23, this Agency conducted the following due diligence checks:

a) Regarding the indications included in the advertising emails, there is no record of any mechanism that allows for opposition to the processing of data for promotional purposes (email address or other valid electronic address where this right can be exercised).

b) Regarding the information provided in the Privacy Policy of the website <https://prensamadrid.com/>, the following information can be read:

CONTACT: soporte@posicionar.org (CARSO TRADING SL).

FIFTH: On 21/12/23, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringements of Article 15 of the GDPR classified in Article 83.5 of the aforementioned regulation.

In the opening agreement, it was determined that the sanction that could correspond, based on the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 1,000 euros (one thousand euros).

The notification of the opening agreement was carried out in accordance with the rules established in the LPACAP. According to the Certificate from the State Society Correos y Telégrafos, S.A., the initiation document sent to the registered office, ***DIRECCION.1, was returned to sender on 02/01/24, with the message "unknown," as stated in the acknowledgment of receipt in the file.

On 08/01/24, the notification of the initiation agreement was made by announcement in the Single Edict Board of the Official State Gazette, in accordance with Article 44 of

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the LPACAP. In this announcement, the respondent is informed about the possibility of obtaining a copy of the opening agreement.

SIXTH: Once the aforementioned initiation agreement has been notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the respondent, and the sanction that could be imposed. Therefore, taking into account that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered, in this case, a proposal for resolution.

In view of all that has been acted upon, the following are considered proven facts by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

First: It is recorded in the file that a commercial email was received at the address ***EMAIL.3, sent from the address ***EMAIL.1 on 22/04/23, containing the following message:

"Hello A.A.A., I am B.B.B. from the Press Department. How are you? I am contacting you because I want to explain how ***EMPRESA.1 can appear in more than 50 digital newspapers as news, for a single monthly fee of 99 euros without permanence (...)"

Second: It is recorded in the file a copy of the email sent by the complainant ***EMAIL.3 to the address soporte@posicionar.org on 24/04/23, in which he requests the right of access and his opposition to the processing of his personal data for marketing purposes:

"By means of this document with qualified electronic signature, I exercise my rights of access, opposition, and limitation of processing, in accordance with the provisions of the General Data

Protection Regulation (...)."

Third: It is recorded in the file that a commercial email was received at the address ***EMAIL.3, sent from the address ***EMAIL.2 on 03/07/23, containing the following message:

"Hello {{name}}, my name is B.B.B.. I would like to talk to you about how we can improve your business's positioning on the internet and reputation by publishing real news in more than 60 digital newspapers of great authority. Could you provide me with a phone number to offer you up to two months free? Thank you."

LEGAL GROUNDS

I.

Competence.

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II.

Summary of the events that occurred:

According to the complainant, on 22/04/23 he received a commercial communication by email without having previously requested or expressly authorized it, and without there being a prior contractual relationship. One day later, on 24/04/23, he contacted the sender via email to request that they cease their communications and to exercise his right of access to any personal data they may have about him, receiving no response. Despite this, on 03/07/23 he received another advertising email from the sender.

III.

Attention to the right of access of the interested party

Article 15 "Right of access of the data subject" of the GDPR establishes:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, access to the personal data and the following information: a) the purposes of the processing; b) the categories of personal data concerned; c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations; d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period; e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing; f) the right to lodge a complaint with a supervisory authority; g) where the personal data have not been obtained from the data subject, any available information as to their source; h) the existence of automated decision-making, including profiling;"

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profiles, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and expected consequences of such processing for the data subject.

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 related to the transfer.

3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject makes the request by electronic means, and unless they request that it

be provided in another way, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

In the present case, the complainant requested, via an email addressed to soporte@posicionar.org, on 24/04/23, access to the data held by the entity about them, receiving no response.

Therefore, in accordance with the available evidence, it is considered that the known facts constitute an infringement, attributable to the respondent for violation of Article 15 of the GDPR.

IV.

Sanction

The aforementioned infringement of Article 15 of the GDPR constitutes the commission of the infringement classified in Article 83.5 of the GDPR which, under the heading "General conditions for the imposition of administrative fines," states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: (...) b) the rights of data subjects under Articles 12 to 22; (...)"

For the purposes of the limitation period, Article 72.1.k) "Infringements considered 'very serious'" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years: those that involve a substantial violation of the articles mentioned therein and, in particular, the following: (...) k) The hindrance or obstruction or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 (...)"

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According to these criteria, it is deemed appropriate to impose a fine of 1,000 euros (one thousand euros) for the infringement of Article 15 of the GDPR, classified in Article 83.5 of the aforementioned regulation.

V

Measures

It is deemed appropriate to order the controller to properly address the access request exercised by the complainant within one month, in accordance with the provisions of Article 58.2 d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...", and to inform this Agency within that period of the measures taken in this regard.

The imposition of this measure is compatible with issuing a warning, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS RESOLVED:

FIRST: TO IMPOSE on the entity CARSO TRADING, S.L., with CIF: B12940946, for the violation of Article 15 of the GDPR, classified in Article 83.5 of the aforementioned regulation, a fine of 1,000 euros (one thousand euros).

SECOND: TO ORDER the entity CARSO TRADING, S.L., with CIF: B12940946, to properly address the access request exercised by the complainant within one month, based on the stipulations of Article

15 of the GDPR, and to inform this Agency within the same period about the measures adopted.

THIRD: TO NOTIFY this resolution to CARSO TRADING, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the number of

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procedure outlined in the heading of this document, in the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code:

CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at

the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, interested parties may optionally file a reconsideration appeal before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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